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DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 166

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO ATTENDANCE AND
ACCOMMODATIONS FOR PREGNANT AND PARENTING STUDENTS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 27, Title 14 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 2708. Accommodations for students related to pregnancy and parenting.

(a) No person shall be excluded from participation in, denied the benefits of, or subjected to discrimination under
any education program or activity receiving approval or financial assistance from the State on the basis of pregnancy,
childbirth, or related conditions, including lactation, their status in a parent-child relationship as defined in §§ 8-201(a)(1)
and 8-201(b)(1-3) of Title 13, or their status as a guardian charged with caring for a child during the child's minority.

(b) Any educational program or activity receiving approval or financial assistance from the State serving students
in the State must provide for the following accommodations for a pregnant or parenting student:

(1) Excuse all absences for students who are pregnant or will be in a parent-child relationship, for the
following:

a. Labor.

b. Delivery.

c. Prenatal and postnatal medical appointments that the student's physician states in writing are
medically necessary.

(2) Excuse up to 5 days of health-related absences for a student who has a pregnancy related health need
or illness. Additional days must be excused if the student provides a health-care provider's note to the school
explaining the need for additional absences due to health needs related to pregnancy, childbirth, or related
conditions. A student may not be penalized while they obtain a health-care provider's note and must be given at
least 30 days to obtain a note.

(3) Provide 6 weeks of excused absences for the student giving birth to a child that commence
immediately following the birth of the student's child and must be taken on consecutive days thereafter. Students

may be required to provide a health-care provider's note stating their due date or delivery date but may not be required to provide any additional documentation. Additional days must be excused if the student provides a health-care provider's note to the school explaining the need for additional excused absence due to the birth of a child. A student may not be penalized while they obtain a health-care provider's note and must be given at least 30 days to obtain a note.

(4) Excuse absences due to an illness or a medical appointment of the student's child, including up to 4 days of absences per school year for which the school may not require a note from a health-care provider.

(5) Excuse absences due to court appearances and related needs in matters of adoption, foster care, custody, visitation, child support, domestic violence, dating violence, sexual assault, and stalking involving a student who is pregnant or in a parent-child relationship.

(6) For purposes of this section, "health-care provider" means an individual licensed, certified or otherwise authorized or permitted by law to provide health care in the ordinary course of business or practice of a profession.

(c) Any educational program or activity receiving approval or financial assistance from the State must provide for the following reasonable accommodations for a pregnant or parenting student, including the following:

(1) For a lactating student, access to a private, clean, and secure room free from intrusion, which may include a nurse's office but may not include a restroom, to express milk. The room shall include access to a power source for a breast pump or related equipment used to express milk, a comfortable chair, table for any lactation equipment, lighting, ventilation, and a means to secure the door. The room must be in reasonable proximity to the student's place of study. The student may bring any lactation equipment into the school. The school must provide the student with access to a refrigerator to store expressed milk safely and in a reasonable proximity to the room being used to express milk.

(2) Access to equipment or transportation services such as reserved parking spaces, elevator access, or modified transportation schedules.

(3) Modification to the student's schedule such as altered course sequence, changes in course load in either reduction or increase, online access to class or remote learning, extensions of time for coursework and rescheduling of tests or assignments, or testing accommodations such as extended time, alternate locations, and take-home examinations.

(4) Any reasonable accommodations for academic supports such as tutoring, supplemental instruction, learning support, and counseling.

(5) For a parenting student, breaks during classes, athletics, and extracurricular activities as reasonably needed to attend to emergency childcare needs.

(6) A student may not be forced to accept an accommodation if they do not wish to receive the accommodation.

(d) A student may not incur an academic penalty as a result of their use of any reasonable accommodations specified in subsection (c) of this section and shall be provided the opportunity to make up any work missed in using any reasonable accommodations.

(e) At the conclusion of an absence related to pregnancy, childbirth, or parenting, the school shall allow the student to:

(1) Make up the work that the student missed in a reasonable amount of time, not less than the number of days the student was absent.

(2) Allow the student access to the same options to make up missed work as a student who was absent because of an illness.

(f) Except as otherwise provided in this section, a school may not require documentation, such as a physician's note, or impose other requirements to excuse pregnancy-related absences or grant pregnancy-related accommodations.

(g) The Department of Education shall promulgate regulations necessary to implement and enforce this section.

Section 2: If this Act is enacted before or on July 1, 2025, this Act takes effect on July 1 of the first full year following its enactment into law. If this Act is enacted after July 1, 2025, this Act takes effect on July 1 following its enactment into law.

SYNOPSIS

This Act mandates that all schools receiving approval or financial assistance from the State provide parenting and pregnant students with the following protections:

1. Excused absences for pregnancy related events.
2. Excused absences for health-related needs or illnesses associated with pregnancy.
3. Six weeks of excused absences for students giving birth to a child, immediately following delivery.
4. Excused absences for medical appointments for a student's child.
5. Excused absences for court appearances related to the student's child or the pregnant student.

This Act further provides for accommodations to a pregnant or parenting student by allowing for the following:

1. For a lactating student, the student must have access to a private, clean, and secure room to express milk and any other associated equipment needed for lactation.
2. Access to equipment or transportation services.
3. Modifications to a student's schedule or coursework.
4. Reasonable academic supports.
5. Accommodations to assist parenting students.

Any accommodations need not be accepted by the student, if they do not wish to receive the accommodation. A student who receives any accommodations may not be academically penalized for it. Furthermore, at the conclusion of a pregnancy, childbirth, or parenting event, the school must allow the student to make up the work and allow the student the

same opportunity to do so, as any other student would receive due to an illness. The Act prohibits a school from requiring a student to provide medical documentation for an absence or accommodation, unless explicitly provided for by this Act.

This Act will be implemented on July 1, 2026.

Author: Senator Sturgeon